

ACA, Cancillería, Reg. 1751, f. 6r

Royal Mandate: Protection of the Scribania of the Baiulia of Perpignan

Document Summary

Field	Value
Archive	Arxiu de la Corona d'Aragó (ACA), Cancillería
Register	Reg. 1751, f. 6r
Document type	Royal mandate (<i>manament</i> / <i>compulsòria</i>)
Language	Latin
Issuer	Joan I, King of Aragon
Addressee	Procurator of royal revenues in Roussillon and Cerdanya (unnamed); or his lieutenant
Petitioner	Bartholomeus Sirvent, secretary of Queen Violant de Bar
Other named individual	Petrus Ornos, notary — leaseholder (<i>arrendatari</i>) of the scribania on behalf of Sirvent
Subject	Protection of a life concession of the scribania of the baiulia of Perpignan against interference by the procurator of revenues
Date	May 6, 1387
Place of issue	Barcelona
Seal	Secret seal (<i>sigillum secretum</i>)
Subscription	Francescus ca Costus

Reconciled Transcription

Johannes et cetera ffideli procuratori reddituum nostrorum in comitatibus Rossilionis et Ceritanie · Dilecto nostro vel eius locumtenenti · Salutem et gratiam · Exponere fecit nobis fidelis secretarius Illustris yolandis Regine Aragonum Conjugis nostre preclare Bartholomeus Siruent dicendo quod licet scribania baiulie Perpinyani cum omnibus suis lucris fructibus emolumentis

et iuribus qua sit et sibi pertineat pleno iure ex concessione facta eidem ad vitam per Illustrissimum dominum Petrum Regem Aragonum bone memorie patrem nostrum · Et de ipsa scribania fuerit ipse in plena et pacifica possessione seu quasi · Vos tamen his diebus Petrum Ornos notarium tenentem ex arrendamento ipsius Bartholomei scribaniam predictam sub pretexto cuiusdam annue pensionis cogitis de facto sine ulla iusta causa preambula ad respondendum vobis de ipsa quantitate pensionis iamdicte · in preiudicium atque dampnum exponentis predicti et sue concessionis possessionis ac iuris non modicam lesionem · Et etsi non contentus premissis compellatis sicut fertur ad arrendandum scribaniam eandem nostro nomine [?] · Nobisque supplicavit humiliter pro remedio circa hec adhiberi · Quia ad concessionem gratiasque per nos et nostros predecessores [?] factas fides debet attendi gravissimumque esse periculum [?] subtrahi quod est datum munificencia principali [?] · Quia nullus absque cognitione cause sua est possessione privandus sed tuendus potius in eadem · Dicimus et mandamus vobis de certa sciencia et expresse quatenus servando supplicanti predicto concessionem iamdictam nix et servem [?] plenior ac manutenendo eundem in possessione qua est de premissis restituatis sibi confestim [?] seu dicto Petro Ornos nomine suo quitquod [?] expensione et recepistis iamdictam · nec amodo presumatis ad dictum arrendamentum fiendum procedere · nec aliud facere in preiudicium concessionis et possessionis superius contentarum · Datum Barchinone sub nostro sigillo secreto · Sexta die maii anno a natiuitate domini Millesimo CCCo LXXXo septimo :— Franciscus ca Costus :—

English Translation

Joan,¹ etc., to the faithful procurator of our revenues in the counties of Roussillon and Cerdanya,² our beloved [official], or to his lieutenant: greetings and grace.

The faithful secretary of the illustrious Yolanda, Queen of Aragon,³ our distinguished consort — Bartholomeus Sirvent⁴ — has caused it to be set forth before us, saying that although the scribania of the baiulia of Perpignan,⁵ with all its profits, fruits, emoluments, and rights, as is his due and pertains to him by full right from a concession made to him for life by the most illustrious lord Pere, King of Aragon, of blessed memory, our father⁶ — and although he has been and is in full and peaceful possession, or quasi-possession,⁷ of the said scribania — you nevertheless, in these recent days, have been compelling Petrus Ornos,⁸ notary, who holds the said scribania by lease from the said Bartholomeus, under the pretext of a certain annual pension, in fact and without any just cause preceding, to render account to you for the said sum of the aforesaid pension, to the prejudice and damage of the aforesaid petitioner and to no small injury of his concession, possession, and right. And further, not content with the foregoing, you are reportedly compelling [him] to lease the said scribania anew in our name.⁹

He has humbly petitioned us that a remedy be applied in this matter.

Since faith ought to be given to concessions and grants made by us and by our predecessors, and since it is a most grave danger¹⁰ that what has been given by princely munificence should be

taken away — and since no one ought to be deprived of his possession without cognizance of cause, but rather should be protected therein —

We say and command you, from certain knowledge and expressly, that, preserving for the aforesaid supplicant the aforesaid concession [with ... fuller ...]¹¹ and maintaining him in the possession that he holds of the premises, you shall restore to him forthwith — or to the said Petrus Ornos in his name — whatever¹² you have received by way of payment of the aforesaid [pension]; and that you shall not henceforth presume to proceed with the said lease, nor to do anything else to the prejudice of the concession and possession contained above.

Given at Barcelona, under our secret seal, the sixth day of May in the year of the Nativity of the Lord one thousand three hundred and eighty-seven.¹³

Francescus ca Costus.¹⁴

Footnotes

1. Joan I of Aragon (r. 1387–1396). The abbreviated intitlatio ("Johannes et cetera") is standard for chancery register copies, where the full royal style was omitted to save space.
2. The counties of Roussillon and Cerdanya (modern French Roussillon and Cerdagne), held by the Crown of Aragon. The procurator of royal revenues (*procurator reddituum*) in these counties was the principal fiscal officer responsible for managing crown income in the territory.
3. Violant de Bar (Yolanda), queen consort of Joan I, daughter of Robert I, Duke of Bar, and Marie of Valois. The Latin *Illustris yolandis* preserves the Latinized form of her French name.
4. Bartholomeus Sirvent: a secretary (*secretarius*) of Queen Violant. His surname also appears elsewhere in the register as a chancery scribe. The life concession of the scribania of the baiulia of Perpignan represents a significant source of income, suggesting Sirvent occupied a position of some trust and favor.
5. The *scribania baiulie Perpinyani* — the notarial office attached to the baiulia (local royal court) of Perpignan. This office carried the right to collect fees for the production of legal instruments, court records, and other notarial acts within the jurisdiction of the *batlle* (bailiff) of Perpignan. Life concessions of scribanies were a common form of royal patronage, often granted to chancery officials.
6. Pere IV el Cerimoniós (r. 1336–1387), Joan I's father, who died on January 5, 1387 — only four months before this document was issued. The concession thus dates from the immediately preceding reign.

7. *Possessio seu quasi*: a standard legal formula deriving from Roman law. Technically, *quasi-possessio* applies to incorporeal rights (such as the right to exercise a notarial office and collect its revenues), which cannot be "possessed" in the physical sense applicable to land or movable property.
 8. Petrus Ornos: a notary who holds the scribania via a lease (*arrendamentum*) from Sirvent. This is a standard arrangement: the concessionary (Sirvent) sub-leases the actual operation of the notarial office to a working notary (Ornos), who pays Sirvent an annual rent and retains the operational profits.
 9. The procurator's interference takes two forms: first, compelling Ornos to pay the annual pension to the procurator rather than to Sirvent; second, attempting to re-lease (*arrendar*) the scribania himself in the king's name, thereby dispossessing Sirvent of his life concession entirely. The phrase *nostro nomine* ("in our name") indicates the procurator claims to act under royal authority.
 10. The text reads *periculum* ("danger/peril"), where one might expect *periculosum* ("pernicious") or similar. The sense is that it constitutes a grave risk to the integrity of royal patronage if grants can be unilaterally revoked.
 11. The clause "nixer siu serviem [?] plenior" remains unresolved. The standard formula would call for something like *vim sufficientem plenior* ("with fuller sufficient force") or *nixu sive servitio plenior* ("with fuller effort or service"), reinforcing the command. The translation brackets indicate uncertainty. See *Unresolved Ambiguities*, no. 1.
 12. Jonathan's transcription reads *quicquod*, likely representing *quicquid* ("whatever/whatsoever"). The form *expensione* ("by way of payment") with *recepistis iamdictam* ("you have received of the aforesaid [pension]") indicates the procurator must return all sums improperly collected from Ornos.
 13. May 6, 1387. Joan I acceded to the throne on January 5, 1387, upon the death of Pere IV. This mandate — issued barely four months into the new reign — suggests that the procurator's interference with Sirvent's concession may have been opportunistic, exploiting the transition between reigns to challenge grants made by the deceased king.
 14. Francescus ca Costus: the vice-chancellor Francesc çà Costa, who validated numerous documents in Joan I's early reign. The Latinized form "ca Costus" represents the Catalan surname "çà Costa." The subscription here serves as the *iussio* or validation mark.
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Unresolved Ambiguities

1. "**nixer siu serviem plenior**" — The central crux of the dispositio operative clause. The phrase does not parse as standard Latin. Possible underlying readings include *nixu sive*

servitio pleniore ("with fuller effort or service"), *vim seu servitutem plenior* ("fuller force or binding obligation"), or some other combination obscured by abbreviation. Archival verification of these letterforms is needed.

2. **"confestim" vs. "confestrim"** — Jonathan's transcription reads *confestrim*; the standard Latin adverb is *confestim* ("immediately, forthwith"). The extra -r- may be a scribal variant or a misreading. Translated here as "forthwith" following the standard form.
3. **"quitquod"** — Likely representing *quicquid* ("whatever"). The form *quitquod* is non-standard but comprehensible; it may reflect scribal practice or an imperfect transcription of a heavily abbreviated form.
4. **"nostro nomine [?]"** — The clause following "ad arrendandum scribaniam eandem nostro nomine" is uncertain. The HTR reads "iure novo ipse vobis"; Claude initially read "et nobis." Neither is fully satisfactory. The sense should specify the terms on which the procurator claims authority to re-lease the scribania.
5. **"gratiasque per nos et nostros predecessores [?]"** — The exact form of *predecessores* (whether abbreviated as *precessores*, as the HTR reads, or fully rendered) needs verification. The -que enclitic attachment to *gratias* is also worth confirming.
6. **"datum munificencia principali" vs. "contra munificentiam principalem"** — The legal maxim requires that what has been *granted* by princely munificence should not be taken away. The exact construction — ablative of means (*datum munificencia principali*) or prepositional phrase (*contra munificentiam principalem*) — affects the nuance but not the substance. Archival verification needed.
7. **"periculum"** — The word is contextually unusual. Possible alternative readings include *perniciosum* or *piaculum*. The sense is clear regardless.
8. **"expensione et recepistis iamdictam"** — The exact syntax of the restitution clause is uncertain. The *et* between *expensione* and *recepistis* is awkward; possibly *expensione* modifies *iamdictam* and *et* should be read differently, or there is a scribal error.